

STATE OF NEW YORK

7390--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 25, 2025

Introduced by M. of A. HYNDMAN -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to college admission and financial aid for students who have received a high school diploma from certain online high school programs

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph f of subdivision 4 of section 661 of the education law, as amended by section 1 of part Z of chapter 58 of the laws of 2 2011, is amended to read as follows:

3 f. For students who first receive aid pursuant to this chapter in 4 academic year two thousand seven--two thousand eight or thereafter, must 5 have (i) a certificate of graduation from a school providing secondary 6 education from a state within the United States; or (ii) the recognized 7 equivalent of such certificate; or (iii) received a passing score on a 8 federally approved ability to benefit test that has been identified by 9 the board of regents as satisfying the eligibility requirements of this 10 section and has been independently administered and evaluated as defined 11 by the commissioner; or (iv) received a high school diploma, or the 12 equivalent thereof, from an online high school program located within 13 the United States that is accredited in accordance with paragraph four 14 of appendix three hundred two of the Job Corps Policy and Requirements 15 Handbook (Guidelines for the Ongoing Quality Monitoring of Job Corps 16 High School Diploma (HSD) Programs), as amended from time to time;

17 § 2. Paragraph h of subdivision 2 of section 355 of the education law 18 is amended by adding a new subparagraph 11 to read as follows:

19 (11) Notwithstanding any law, rule or regulation to the contrary, such 20 regulations shall provide for eligibility of admission for students who 21 have completed an online high school program which (i) has in excess of 22 ten thousands students per year nationally complete such program, (ii) 23

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 is located within the United States, and (iii) is accredited in accord-
2 ance with paragraph four of appendix three hundred two of the Job Corps
3 Policy and Requirements Handbook (Guidelines for the Ongoing Quality
4 Monitoring of Job Corps High School Diploma (HSD) Programs), as amended
5 from time to time;

6 § 3. Section 6306 of the education law is amended by adding a new
7 subdivision 3-b to read as follows:

8 3-b. The board of trustees of each community college, and those
9 provided for in the city of New York by subdivision three of this
10 section, shall adopt a policy for admission of students who have
11 completed an online high school program located within the United States
12 consistent with the provisions of subparagraph eleven of paragraph h of
13 subdivision two of section three hundred fifty-five of this chapter.

14 § 4. Section 6206 of the education law is amended by adding a new
15 subdivision 13-a to read as follows:

16 13-a. The board of trustees shall provide standards for admission of
17 students who have completed an online high school program located within
18 the United States consistent with the provisions of subparagraph eleven
19 of paragraph h of subdivision two of section three hundred fifty-five of
20 this chapter.

21 § 5. This act shall take effect on the ninetieth day after it shall
22 have become a law. Effective immediately, the addition, amendment and/or
23 repeal of any rule or regulation necessary for the implementation of
24 this act on its effective date are authorized to be made and completed
25 on or before such effective date.